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way, whether the rule of law as applied to the established facts is or is not violated.” *Pullman-Standard v. Swint*, 456 U. S. 273, 289, n. 19 (1982).

We think independent appellate review of these ultimate determinations of reasonable suspicion and probable cause is consistent with the position we have taken in past cases. We have never, when reviewing a probable-cause or reasonable-suspicion determination ourselves, expressly deferred to the trial court’s determination. See, *e. g.*, *Brinegar*, *supra* (rejecting District Court’s conclusion that the police lacked probable cause); *Alabama v. White*, 496 U. S. 325 (1990) (conducting independent review and finding reasonable suspicion). A policy of sweeping deference would permit, “[i]n the absence of any significant difference in the facts,” “the Fourth Amendment’s incidence [to] tur[n] on whether different trial judges draw general conclusions that the facts are sufficient or insufficient to constitute probable cause.” *Brinegar*, *supra*, at 171. Such varied results would be inconsistent with the idea of a unitary system of law. This, if a matter-of-course, would be unacceptable.

In addition, the legal rules for probable cause and reasonable suspicion acquire content only through application. Independent review is therefore necessary if appellate courts are to maintain control of, and to clarify, the legal principles. See *Miller v. Fenton*, 474 U. S. 104, 114 (1985) (where the “relevant legal principle can be given meaning only through its application to the particular circumstances of a case, the Court has been reluctant to give the trier of fact’s conclusions presumptive force and, in so doing, strip a federal appellate court of its primary function as an expositor of law”).

Finally, *de novo* review tends to unify precedent and will come closer to providing law enforcement officers with a defined “‘set of rules which, in most instances, makes it possible to reach a correct determination beforehand as to whether an invasion of privacy is justified in the interest of

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law enforcement.’” *New York v. Belton*, 453 U.S. 454, 458 (1981); see also *Thompson v. Keohane*, 516 U.S. 99, 115 (1995) (“[T]he law declaration aspect of independent review potentially may guide police, unify precedent, and stabilize the law,” and those effects “serve legitimate law enforcement interests”).

It is true that because the mosaic which is analyzed for a reasonable-suspicion or probable-cause inquiry is multifaceted, “one determination will seldom be a useful ‘precedent’ for another,” *Gates, supra*, at 238, n. 11. But there are exceptions. For instance, the circumstances in *Brinegar, supra*, and *Carroll v. United States*, 267 U.S. 132 (1925), were so alike that we concluded that reversing the Court of Appeals’ decision in *Brinegar* was necessary to be faithful to *Carroll*. *Brinegar, supra*, at 178 (“Nor . . . can we find in the present facts any substantial basis for distinguishing this case from the *Carroll* case”). We likewise recognized the similarity of facts in *United States v. Sokolow, supra*, and *Florida v. Royer*, 460 U.S. 491 (1983) (in both cases, the defendant traveled under an assumed name; paid for an airline ticket in cash with a number of small bills; traveled from Miami, a source city for illicit drugs; and appeared nervous in the airport). The same was true both in *United States v. Ross*, 456 U.S. 798 (1982), and *California v. Acevedo*, 500 U.S. 565 (1991), see *id.*, at 572 (“The facts in this case closely resemble the facts in *Ross*”); and in *United States v. Mendenhall*, 446 U.S. 544 (1980), and *Reid v. Georgia*, 448 U.S. 438 (1980), see *id.*, at 443 (Powell, J., concurring) (“facts [in *Mendenhall*] [are] remarkably similar to those in the present case”). And even where one case may not squarely control another one, the two decisions when viewed together may usefully add to the body of law on the subject.

The Court of Appeals, in adopting its deferential standard of review here, reasoned that *de novo* review for warrantless searches would be inconsistent with the “‘great deference’” paid when reviewing a decision to issue a warrant, see *Ill-*